

Smt. Sushila Devi And Another v. State Of U.P. And 2 Others

High Court of Judicature at Allahabad · Division Bench · 7 April 2023 · WRIT - C No. - 11414 of 2023 · **Notice withdrawn; writ disposed, fresh order after hearing.**

HEADNOTE

Recovery notice dated 23.8.2022 for electricity dues in a theft case was withdrawn by the department. The writ was disposed of with liberty to pass a fresh order after hearing, strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Sushila Devi and another petitioned the Allahabad High Court against a recovery notice dated 23 August 2022 raised by the electricity department for dues in a case of alleged theft of electricity. The State of Uttar Pradesh and two others were the respondents. Counsel for the electricity department informed the Court that the impugned notice had already been withdrawn and that a fresh order would be made after the petitioners were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.7.4

Theft-dues recovery notice withdrawn; fresh order under the Supply Code

HOLDING

Where the licensee withdraws a recovery notice for electricity dues in a theft case and states that a fresh order will follow an opportunity of hearing, the writ is disposed of with liberty to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG The order invokes the Supply Code procedure generally and does not number clause 7.7.4.

PRINCIPLE TAGS

UP-2005::7.7.4 The 23.8.2022 theft-recovery notice stood withdrawn on the department's statement, and any fresh order was left to be passed only after hearing and strictly under the Supply Code procedure. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT WAS MADE OUT AND WHAT DUES, IF ANY, ARE RECOVERABLE

The impugned notice was withdrawn. Liability and quantum were left to a fresh order after hearing. ¶ 1